

Status and outcome of further mediation.

As to the Motion for Judgment on the Pleadings:

The court grants the motion for judgment on the pleadings per Code of Civil Procedure section 438 with leave to amend. The petitioner lacks standing to bring this action as she is not a named beneficiary or trustee of the trust. The language about the deceased co-trustee Hiawatha Roberts dividing the trust estate at his discretion “between the family members” is too nebulous to confer standing, and the “family members” are unnamed in both the original trust and the purported amendment. The petitioner’s relationship to Hiawatha Roberts does not, by itself, confer standing under Probate Code section 48. Her allegation that Hiawatha’s election to have the Texas farmland distributed to him does not confer standing on her as to the trust itself. The petitioner does not allege or demonstrate that she has been appointed as the representative of her father’s estate. The petitioner must file her amended complaint no later than 30 days from the date of this ruling.

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**IN RE THE ESTATE OF LUPE RODRIGUEZ, DECEASED
PR25-00487**

First and Final Account and Report of Executor, and Petition for Final Distribution, For Allowance of Compensation to Executor For Statutory Services, and For Allowance of Attorneys’ Fees for Statutory Services

PREGRANT ORDER

The court finds all notices have been given as required by law. The petition is granted as prayed except that release of liability and discharge shall be ordered only upon the filing of the Ex Parte Petition for Final Discharge and Order once assets are distributed pursuant to Probate Code section 11753. All future compliance hearings are vacated.

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**IN THE MATTER OF THE KISAK TRUST DATED MARCH 15, 1990
PR26-00109**

Petition for Modification of Trust (Probate Code §§ 15409, 17200)

PREGRANT ORDER

The court continued this matter to allow the petitioner to address the issue with the petition which has now been resolved. Therefore, absent any objections the court intends to find the following:

The court finds all notices have been given as required by law. The petition is granted as prayed.